IN THE ADMINISTRATIVE REVIEW TRIBUNAL

BRISBANE REGISTRY

GENERAL DIVISION

ART No. 2023/4494 Forward Focused Group Pty Ltd v Commissioner of the NDIS Quality and Safeguards Commission

APPLICANT'S POSITION STATEMENT – FORWARD FOCUSED GROUP PTY LTD

Interlocutory Hearing – 20 March 2026

1. By letter dated 13 February 2026, the Respondent's solicitors invited FFG to consider withdrawing its application for review on the basis that the banning order expired on 20 December 2025 and is now recorded on the register as no longer in force.

2. FFG declines that invitation and maintains its application for review.

3. The expiry of the banning order does not deprive the Tribunal of jurisdiction or render the proceeding without practical utility.

4. The banning order continues to have ongoing practical consequences because it remains published on the NDIS Commission's public register as a historical regulatory action. The Respondent's own correspondence confirms that expired banning orders remain on the register and may only be removed in exceptional circumstances following written application.

5. A finding by the Tribunal that the banning order should not have been made, or was not validly made, would plainly bear upon any future application for removal from that register and upon the continuing reputational consequences of the published order. The proceeding therefore retains practical utility.

6. However, FFG does not contend that its matter should be heard as a priority ahead of the matters concerning Simon Reid and Vida Reid.

7. The matters of Simon Reid and Vida Reid concern natural persons who continue to face direct personal consequences from their banning orders, including continuing stigma, restrictions upon participation in the sector, and other personal consequences not shared in the same way by the corporate entity.

8. FFG's position is that the Tribunal should first determine, or at least first progress to hearing, the matters concerning the individual applicants, including the distinct issues raised in those matters concerning the lawful basis of the banning orders, whether the decisions were properly individualised, and whether the internal review process introduced new material or altered the legal foundation of the bans.

9. Efficient case management favours the progression of the individuals' matters first, particularly where the applicants are self-represented and should not be required to fight every procedural and merits issue across three matters simultaneously.

10. FFG therefore seeks that its matter remain on foot, but be deferred until after the Tribunal has dealt with the priority hearing of the individual matters.

11. FFG seeks orders that ART No. 2023/4494 remain on foot, not be treated as moot, and be deferred and relisted for further case management after the Tribunal has materially progressed or heard the individual matters.

Dated: 6 March 2026

Simon Reid

Sole Director, Forward Focused Group Pty Ltd